

8. Fundamental Duties and its Legal Status

Contents

8.1 Introduction.....	1
8.2 Article 51A - Fundamental Duties	1
8.3 Legal Status of Fundamental Duties	2

8.1 Introduction

- Part IV of India's Constitution talks about Fundamental Duties.
- Right now, there are 11 Fundamental Duties.
- When India's Constitution was first made, it did not have these duties. They were added later by the 42nd and 86th Amendments.
- These duties are for Indian citizens only, not for foreigners.
- India got the idea of Fundamental Duties from the USSR(Union of Soviet Socialist Republics).
- The Constitution expects citizens to follow these duties, but like the Directive Principles, they cannot be enforced by law. This means there is no punishment if someone does not follow them.

8.2 Article 51A - Fundamental Duties

It is the responsibility of every Indian citizen to follow these duties:

- Follow and respect the Constitution, its values, the National Flag, and the National Anthem.
- Respect and follow the noble ideas that inspired our freedom struggle.
- Protect and maintain the unity, sovereignty, and integrity of India.
- Defend the country and serve the nation when needed.
- Promote harmony and brotherhood among all Indians, beyond religion, language, or region, and respect the dignity of women.

- Protect and preserve India's rich cultural heritage.
- Protect and improve the environment, including forests, lakes, rivers, and wildlife, and be kind to all living beings.
- Encourage scientific thinking, humanism, and the spirit of questioning and reform.
- Protect public property and avoid violence.
- Work hard for excellence in all areas so that the nation progresses to higher levels of achievement.
- Parents or guardians should provide education to children between 6 and 14 years of age.

8.3 Legal Status of Fundamental Duties

- Fundamental Duties are included in the Constitution to remind citizens about their duties as well as their rights.
- Fundamental Rights (Part III), Directive Principles (Part IV), and Fundamental Duties (Part IV A) are connected and should be read together.
- There is no legal punishment for not following Fundamental Duties.
- There is no specific rule for enforcing them or prohibiting anything.
- Even though they are not enforceable by law, they still create a moral responsibility for citizens.
- It is not practical to force people to follow these duties; it should depend on the will of the citizens.
- For people in government jobs, these duties can be enforced through laws and departmental rules.
- Penalties can be given to government employees if they do not follow these duties, such as stopping promotions or salary increases.
- If a government officer goes on strike or stops work, they can lose their salary for that day.
- For people to follow these duties, they must know about them.
- Education about Fundamental Duties should be given in schools and through public awareness.
- In the M.C. Mehta vs. Union of India case, the Supreme Court said the Central Government should make schools teach about protecting the environment at least once a week.

- In the AIIMS Students Union case, the Supreme Court said Fundamental Duties are as important as Fundamental Rights.
- Fundamental Duties are like Directive Principles – they are not enforceable by law but act as guidelines.
- Citizens should remember that they owe these duties to the State; if they ignore them, they should not expect full rights.
- If a law is made to punish actions against these duties, it would be reasonable under the law.
- Fundamental Duties cannot be enforced through the courts directly.
- Since these duties are meant for citizens and not for the State, a citizen cannot claim that the State must prepare them to follow the duties.